

Attachment 2
U.S. Customs and Border Protection
Sole Source Determination
For actions above the micro-purchase threshold but not exceeding the SAT

Date: 4/18/2025

PR Number: 20151244

1. Nature and/or description of the item/service being procured and anticipated cost:

The United States Customs and Border Protection (CBP), United States Border Patrol (USBP), Law Enforcement Operations Directorate (LEOD), Intelligence Division (INTEL) located in Washington, DC proposes to enter into a contract on a basis other than full and open competition to fulfill a critical capability requirement within the Digital Forensic / Document and Media Exploitation (DF/DOMEX) program. The anticipated cost is to be under the Simplified Acquisition threshold.

Contracting Office: CBP, Office of Acquisition, Procurement Directorate, Border Enforcement Contracting Division, Eastern Branch.

USBP requires a variety of digital forensics tools to mitigate identified gaps and satisfy operational needs in support of Border Patrol operations and counter TCO efforts. These forensic tools allow for the extraction of electronic content to be preserved and analyzed for evidentiary purposes.

For over a decade, USBP has utilized Cellebrite tools nationwide. Cellebrite offers commercially available tools to include the UFED used to acquire evidence on certain popular electronic devices utilizing advanced security features. These tools require an annual license renewal to provide warranty coverage and software updates. The warranty and updates provide additional mobile device support and new cables for mobile device connection to the Cellebrite ruggedized handheld units and software solutions installed on deployed workstations (desktops and laptops). The software requires annual license renewals to sustain continued functionality. Upon expiration of the license/warranty, USBP will no longer receive software updates nor the hardware (cables) to support new digital and mobile devices. This will result in USBP not being able to fully examine, extract, image or analyze devices with outdated software versions that do not support the current devices on the market. Additionally, USBP will not be able to fully examine mobile devices from persons of national interest such as Terrorist Screening Dataset (TSDS) matches, which would directly impact on national security.

Additionally, CBP, to include USBP, Air and Marine Operations, Office of Field Operations, and Laboratories and Scientific Services has developed a robust digital support structure around the Cellebrite hardware and software. This support structure includes trained agents/officers/analysts, a detailed Cellebrite Training Program, and a custom interface in CBP system for CBP users to read, interpret, and analyze the

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proprietary XML output files from the Cellebrite devices and software and correlate the data against other CBP holdings.

Renewal licenses being request are estimated to cost \$110,000.00.

2. Sole Source Determination Rationale in accordance with FAR 13.106-1(b)(1)(i) and (ii). (Check one and explain below):

- ☒ Only one source reasonably available.
☐ Urgent and compelling circumstances exists.
☐ Exclusive licensing agreement exists.
☐ Brand name. If the brand name requirement applies to a portion of the procurement, please identify that portion.
☐ Industrial Mobilization
☐ Other. Explain:

As CBP develops new requirements, CBP intends to conduct more market research to ensure competition is fostered to the maximum extent possible.

3. The anticipated price will be determined fair and reasonable based on one or more of the price analysis techniques described below in accordance with FAR Part 13.106-3(a)(2).

- ☒ Market Research.
☐ Comparison of the proposed price with prices found reasonable on previous purchases.
☐ Current price List.
☐ Comparison with similar items in a related industry.
☐ Comparison to IGCE.
☐ Contracting Officer's personal knowledge.
☐ Other. Explain:

The anticipated price(s) will be assessed for fair and reasonableness based on prior acquisition history of similar services provided to CBP, as well as past government contracts for these services.

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I certify that this requirement meets the Government's minimum need and that the supporting data, which forms a basis for the Sole Source Determination, is accurate and complete.

Title: Assistant Chief

Signature: *Elva Tolsen*

I hereby determine that the circumstances described herein exist and that the information is accurate and complete to the best of my knowledge:

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